

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 10

Honorable Jeffrey B. El-Hajj

Blanca Than, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2210

DATE: May 28, 2026 TIME: 9:00 A.M. / 9:01 A.M.

To contest the ruling, call (408) 808-6856 before 4:00 P.M.

Make sure to let the other side know before 4:00 P.M. that you plan to contest the ruling.
(Cal. Rules of Court, rule 3.1308(a)(1); Local Rule 8.D.)

****Please specify the issue to be contested when calling the Court and counsel****

The courthouse is open: Department 10 is fully open for in-person hearings. The court **strongly prefers in-person** appearances for all contested law-and-motion matters. For all other hearings, parties may appear either in person or by video. Telephone-only appearances are no longer permitted for civil hearings unless the court grants an exception. (Civil Local Rule 5.A.)

Scheduling motion hearings: Please visit <https://reservations.sccscourt.org> or call 408-882-2430 between 8:30 a.m. and 3:00 p.m. (Mon.-Fri.) to reserve a hearing date for your motion *before* you file and serve it. Motion papers must be filed no more than five court days after reserving the hearing date, or the date will be released to other cases.

Remote appearances: Department 10 uses Unicorn Digital Courtroom (UDC) for remote hearings. **This system requires advance registration with a case number and hearing date.** Please visit this link if you need to appear remotely, and then scroll to the link for Department 10:
<https://santaclara.courts.ca.gov/online-services/remote-hearings>.

Recording is prohibited: Most hearings are open to the public, but state and local court rules prohibit recording of court proceedings without a court order. This prohibition applies to both in-person and remote appearances.

Court reporters: Unfortunately, the court is not able to provide official court reporters for civil proceedings. If any party wishes to have a court reporter, the appropriate form must be submitted. See <https://santaclara.courts.ca.gov/general-information/court-reporter-information>.

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9:00 A.M.

LINE #	CASE #	CASE TITLE	RULING
Line 1	25CV464307	Jessica Martinez v. Hyperice Mexico Holdings, LLC et al.	Click LINE 1 or scroll down for ruling.
Line 2	24CV433040	Jane Doe v. ROE 2 et al.	By stipulation and order, the matter is CONTINUED to October 8, 2026, at 9:00 a.m. in Department 10. The parties are ordered to inform the court no later than August 27, 2026, whether this motion and the motion for summary judgment also set for October 8, 2026, will remain as set. The court will prepare the order.
Line 3	25CV468318	Elizabeth Tan v. Volkswagen Group of America, Inc., a New Jersey Corporation et al.	Plaintiff's motion to compel deposition of defendant's person most knowledgeable. Notice is proper and the motion is opposed by defendant. Defendant's opposition indicates the deposition occurred in January 2026, meaning the motion is moot. Instead of a reply brief, plaintiff filed a notice that the matter "has been taken off calendar." Plaintiff is admonished to withdraw moot motions much earlier in the future so that the court's limited law and motion reservations can be opened for use by other litigants. The motion is DENIED AS MOOT. The court will prepare the order.
Line 4	23CV427200	Walter Kubon et al vs Rosalie Guancione	Click LINE 4 or scroll down for ruling.

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Line 5	24CV441895	BPM, LLP v. SAKU Corporation	Plaintiff BPM, LLP's motion to enter judgment by stipulation. (Code Civ. Proc., § 664.6.) Notice is proper and the motion is unopposed. The parties signed a stipulation for entry of judgment in 2025, under which defendant Sakuu Corporation agreed to make installment payments to pay off a debt. A declaration in support of the motion indicates defendant stopped making payments. That declaration seeks judgment for \$1,225,421.51, consisting of: a principal balance of \$1,175,953.13; \$41,158.38 in interest; \$8,250.00 in attorney fees; and \$60 in costs. On good cause shown, the motion is GRANTED. Moving party to submit proposed order and proposed judgment.
Line 6	25CV460409	Vi Tran v. Hyundai Motor America et al.	Click LINE 6 or scroll down for ruling.
Line 7	24CV450371	Midland Credit Management Inc. v. Pascal Rose	Plaintiff's motion to set aside default judgment and dismiss the action with prejudice. Notice is proper and the motion is unopposed. A trial court must grant relief from default if a timely application for relief from default is "accompanied by an attorney's sworn affidavit attesting to the attorney's mistake, inadvertence, surprise, or neglect." (Code Civ. Proc., § 473, subd. (b).) A declaration by plaintiff's counsel indicates the parties settled the matter before default judgment was entered. On good cause shown, the motion is GRANTED. The default judgment entered on July 18, 2025 is set aside and vacated. On plaintiff's request, the case is dismissed with prejudice. The court will prepare the order.

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Line 8	25CV469136	Dawne Shackelford v. Ameer Alghusain	Plaintiff's motion to stay proceedings due to pending criminal proceedings. The motion is not accompanied by a proof of service, and no defendant has been served the summons and complaint. The motion is DENIED WITHOUT PREJUDICE . For the court to determine whether to stay proceedings, the court needs more information about the pending criminal proceedings. Information about those proceedings must be made under penalty of perjury (e.g., by sworn declaration), preferably also accompanied by documentation from the criminal proceedings. Further, to the extent any claims in this civil action may be subject to arbitration, the moving party must submit evidence regarding the existence of a binding arbitration agreement. The court will prepare the order.
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9:01 A.M.

LINE #	CASE #	CASE TITLE	RULING
Line 1	2004-1-CV-017343	American Contractors Indemnity Company v. Contractors Bond Brokerage I	Order of examination: <u>parties ordered to appear.</u>
Line 2	2004-1-CV-017343	American Contractors Indemnity Company v. Contractors Bond Brokerage I	Order of examination: <u>parties ordered to appear.</u>
Line 3	2015-1-CV-288617	Vishal Gobhil et al. v. IDC Technologies, Inc. ("IDC") et al.	Order of examination: <u>parties ordered to appear.</u>
Line 4	2015-1-CV-288617	Vishal Gobhil et al. v. IDC Technologies, Inc. ("IDC") et al.	Order of examination: <u>parties ordered to appear.</u>

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Calendar Line 1

Case Name: Jessica Martinez v. Hyperice Mexico Holdings, LLC et al.

Case No.: 25CV464307

This is an action for products liability and negligence brought by plaintiff Jessica Martinez (Martinez).

The original and still operative complaint, filed in April 2025, alleges two causes of action: (1) strict product liability; and (2) negligence. Both causes of action are alleged against “Defendants,” and this term is not defined in the complaint. The complaint was filed against defendants Hyperice Mexico Holdings, LLC (Hyperice Mexico), Best Buy Stores, LP (Best Buy), and Doe defendants. The only references to Doe defendants are in paragraphs 1, 4, and 5 of the complaint. The complaint alleges that Martinez purchased a “Hyperice Hypervolt Bluetooth Percussion Massage Device, Model Number 53100 038-00” from a Best Buy location in San Jose, California on December 15, 2020. Approximately two-and-one-half years later, on May 2, 2023, Martinez “dissected her vertebral artery, causing dizziness, weakness, vomiting, and an ischemic stroke” while using the device. (Complaint, ¶¶ 8-9.) There are no exhibits attached to the complaint.

Martinez filed a Doe amendment in July 2025 under Code of Civil Procedure section 474 (section 474), stating that “Plaintiffs” had “learned the true name for the defendant sued in the Complaint as Doe 1 and hereby substitute the true name of Hyperice Inc. for the fictitious name wherever it appears in the Complaint.” The name “Doe 1” does not appear anywhere in the complaint; the Doe defendants are only referred to collectively in the complaint.

At issue is a demurrer to the complaint’s first cause of action by Hyperice, Inc. (hereafter, Hyperice), which Martinez opposes.

DEMURRER - LEGAL STANDARDS

In ruling on a demurrer, the court accepts as true all properly pleaded material factual allegations but does not accept as true contentions, deductions or conclusions of fact or law. (*Valero v. Spread Your Wings, LLC* (2023) 88 Cal.App.5th 243, 253.) Code of Civil Procedure section 430.60 states that “[a] demurrer shall distinctly specify the grounds upon which any of the objections to the complaint, cross-complaint, or answer are taken. Unless it does so, it may be disregarded.” The California Rules of Court also require that the demurrer itself (distinct from a supporting memorandum) specify the target of any objection and the grounds. (Cal. Rules of Court, rules 3.1103(c), 3.1112(a), 3.1320(a) [“Each ground of demurrer must be in a separate paragraph and must state whether it applies to the entire complaint, cross-complaint, or answer, or to specified causes of action or defenses.”].)

The court cannot consider extrinsic evidence when ruling on a demurrer. Finally, “points raised in the reply brief for the first time will not be considered, unless good reason is shown for failure to present them before.” (*Proctor v. Vishay Intertechnology, Inc.* (2013) 213 Cal.App.4th 1258, 1273.)

DISCUSSION

Code of Civil Procedure section 430.41, subdivision (a) requires the parties to meet and confer “in person, by telephone, or by video conference” before demurring. The demurring party must file a declaration with the demurrer describing the meet and confer efforts. No declaration was submitted with Hyperice’s demurrer. But because a failure to meet and confer is not a basis for overruling a demurrer, the court will consider Hyperice’s demurrer. (Code Civ. Proc., § 430.41, subd. (a)(4).)

Hyperice demurs to the first cause of action for strict product liability. Hyperice argues the first cause of action fails to state sufficient facts against Hyperice because “Plaintiff failed to ‘Doe in’ Defendant until after the applicable two-year statute of limitations (CCP section 335.1) had passed, and the matter does not ‘relate back’ to the timely filing as to co-defendant Hyperice Mexico Holdings, LLC.” (Notice of Demurrer at p. 2:7-12; see also demurrer at p. 1:6-10.) In its supporting memorandum, Hyperice argues that Martinez was never genuinely ignorant of Hyperice’s identity.

“Section 474 allows a plaintiff who is ignorant of a defendant’s identity to designate the defendant in a complaint by a fictitious name (typically, as a ‘Doe’), and to amend the pleading to state the defendant’s true name when the plaintiff subsequently discovers it.” (*McClatchy v. Coblentz, Patch, Duffy & Bass, LLP* (2016) 247 Cal.App.4th 368, 371-372 (*McClatchy*)) “When a defendant is properly named under section 474, the amendment relates back to the filing date of the original complaint. (*Woo v. Superior Court* (1999) 75 Cal.App.4th 169, 176.) Section 474 provides a method for adding defendants after the statute of limitations has expired, but this procedure is available only when the plaintiff is genuinely ignorant of the facts establishing a cause of action against the party to be substituted for a Doe defendant. ‘The question is whether [the plaintiff] knew or reasonably should have known that he had a cause of action against [the defendant].’ ” (*McClatchy*, at p. 372.) “ ‘ “Ignorance of the *facts* giving rise to a cause of action is the “ignorance” required by section 474, and the pivotal question is, “did plaintiff know *facts*?” not “did plaintiff know or believe that [he] had a cause of action based on those facts?” ’ ” (*Ibid.*; see also *Organizacion Comunidad de Alviso v. City of San Jose* (2021) 60 Cal.App.5th 783, 795.)

“[A] defendant named in an action by a Doe amendment under section 474 may challenge the amendment by way of an evidence-based motion.” (*A.N. v. County of Los Angeles* (2009) 171 Cal.App.4th 1058, 1067.) That includes a motion to quash service. (*McClatchy, supra*, 247 Cal.App.4th at p. 375.) Rather than bring an evidence-based motion, Hyperice has demurred.

Martinez’s complaint at paragraph 1 alleges that Martinez is ignorant of the true identity of the Doe defendants. The court must accept that allegation as true on demurrer. Contrary to what Hyperice argues, the allegations at paragraphs 8-9 of the complaint do not conclusively show that Martinez was aware of Hyperice’s identity when she filed her original complaint. On a demurrer, only the face of the pleading may be considered. It is not apparent from the face of the complaint that Martinez knew of Hyperice’s identity. At most, Martinez may have been aware. A plaintiff does not relinquish her rights under section 474 simply because she has a suspicion of wrongdoing arising from one of more facts she does know. (See *McClatchy, supra*, 247 Cal.App.4th at p. 372) “[I]f the plaintiff is actually ignorant of the defendant’s identity, the section 474 relation-back doctrine applies even if that ignorance is the result of the plaintiff’s negligence.” (*Woo, supra*, 75 Cal.App.4th at p. 177.)

Hahn v. New York Air Brake LLC (2022) 77 Cal.App.5th 895, relied on by Hyperice, is distinguishable. *Hahn* involved a motion for summary judgment, where the court could consider evidence submitted by the moving party regarding whether plaintiff was ignorant of the true identity of the Doe defendant. By contrast, Hyperice has challenged the complaint with a demurrer, meaning the court cannot consider extrinsic evidence.

Hyperice's demurrer to the first cause of action on the ground that it fails to state sufficient facts is overruled.

CONCLUSION

Hyperice's demurrer to the complaint's first cause of action is overruled.

Hyperice is ordered to file an answer to the complaint no later than July 6, 2026. (Code. Civ Proc., § 472a, subd. (d).)

The court will prepare the order.

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Calendar Line 4**Case Name:** Walter Kubon et al. v. Rosalie Guancione**Case No.:** 23CV427200

Defendant Rosalie Guancione's motion to expunge lis pendens. Notice is proper and the motion is unopposed. Failure to oppose a motion may be deemed a consent to the granting of the motion. (Cal. Rules of Court, rule 8.54(c).) Failure to oppose a motion leads to the presumption that the non-moving party has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489.)

Background

Plaintiffs Walter and Vally Kubon filed the original complaint in this action in December 2023, alleging a single cause of action for quiet title against defendant. The court granted plaintiffs' ex parte application in January 2024 to record a lis pendens on the subject property: 560 Hobie Lane, San Jose, CA 95127, APN: 601-33-077.

Defendant moved for judgment on the pleadings related to the initial complaint, which the court granted with leave to amend. Plaintiffs filed the first amended complaint in December 2024, which impermissibly added another defendant as well as several causes of action that had not been alleged in the initial complaint. Defendant demurred to the first amended complaint, arguing among other things that plaintiffs were judicially estopped from asserting a claim to the real property because they had disclaimed any interest in the property in United States Bankruptcy Court proceedings. The court sustained defendant's demurrer in May 2025 in a detailed order. As relevant here, the court reasoned:

As Guancione points out, all of the causes of action in the FAC (including those the court has stricken on its own motion) depend upon allegations that Guancione conducted a scheme from 2015 to 2019 to take control of the Kubons' property, the subject property. (See FAC, ¶¶ 11-59.) This includes allegations that Guancione somehow orchestrated the removal of the Kubons from the subject property by armed federal agents in October 2019 (see FAC, ¶ 53-54), making it impossible for the Kubons to allege that they were unaware of alleged wrongdoing by Guancione *after* that point in time. "It is well established that in the context of a demurrer, specific allegations control over more general ones." (*Chen v. PayPal, Inc.* (2021) 61 Cal.App.5th 559, 571-572 (*Chen*).) Yet, when the Kubons filed for bankruptcy in September 2020, they did not disclose the existence of any claims or potential claims against Guancione. They also, in direct contradiction to their current allegations (see FAC, ¶¶ 3 & 12), represented to the bankruptcy court that they did not own any real property, that no one owed them money, that they had no claims against anyone other than the IRS (their counterclaim in the federal tax lawsuit), and that no creditors had claims secured by any property they owned. They also stated that they transferred the subject property in August 2019, affirming the validity of the "Deed-in-Lieu of Foreclosure." (See Request for Judicial Notice ("RJN"), Ex. B.) The Kubons received a discharge from bankruptcy based on these representations. (See Memorandum, pp. 2:4-4:22 and RJN, Exhibits A-G and J-M.)

The documents of which the court has taken judicial notice indicate that by filing this lawsuit, the Kubons have done precisely what the foregoing cited authorities do not permit, and this is sufficient to sustain the demurrer to all remaining causes of action in the FAC (the first, second, fourth, fifth, and sixth) on the basis of judicial estoppel. It is also sufficient to sustain the demurrer to all of the causes of action that the court has already stricken.

(Order re: Demurrer to First Amended Complaint, filed May 13, 2025, at pp. 10:23–11:20.)
The court granted 10 days’ leave to amend.

It does not appear a second amended complaint was ever successfully filed, although defendant did demur to a second amended complaint. By minute order dated January 15, 2026, the court instructed plaintiffs to re-file a proposed third amended complaint along with a stipulation and order. The clerk has since rejected two filings for not following the court’s instructions. There is presently no operative pleading on file.

Legal Standard

“A party to an action who asserts a real property claim may record a notice of pendency of action in which that real property claim is alleged.” (Code Civ. Proc., § 405.20; unspecified references are to the Code of Civil Procedure.) That notice is also referred to as a *lis pendens*. “ ‘Real property claim’ means the cause or causes of action in a pleading which would, if meritorious, affect (a) title to, or the right to possession of, specific real property or (b) the use of an easement identified in the pleading, other than an easement obtained pursuant to statute by any regulated public utility.” (§ 405.4.)

“At any time after notice of pendency of action has been recorded, any party, or any nonparty with an interest in the real property affected thereby, may apply to the court in which the action is pending to expunge the notice.” (§ 405.30.) A *lis pendens* clouds title, effectively preventing transfer of the property until the litigation is resolved. (*BGJ Associates LLC v. Superior Court* (1999) 75 Cal.App.4th 952, 966-67.) “Unlike most other motions, when a motion to expunge is brought, the burden is on the party opposing the motion to show the existence of a real property claim.” (*Kirkeby v. Superior Court* (2004) 33 Cal.4th 642, 647, citing § 405.30.) The motion may be based on the substantive grounds that the underlying action does not involve a real property claim (§ 405.31), or that the real property claim lacks probable validity (§ 405.32). (*J&A Mash & Barrel, LLC v. Superior Court* (2022) 74 Cal.App.5th 1, 16.) “[T]he court shall order that the notice be expunged if the court finds that the claimant has not established by a preponderance of the evidence the probable validity of the real property claim.” (§ 405.32.) “Probable validity” means “more likely than not that the claimant will obtain a judgment against the defendant on the claim.” (*Mix v. Superior Court* (2004) 124 Cal.App.4th 987, 993, citing § 405.3.) “Evidence or declarations may be filed with the motion to expunge the notice. The court may permit evidence to be received in the form of oral testimony, and may make any orders it deems just to provide for discovery by any party affected by a motion to expunge the notice.” (§ 405.30.)

Judicial estoppel is an equitable doctrine that “prevents a party from asserting a position in a legal proceeding that is contrary to a position previously taken in the same or some earlier proceeding.” (*Jackson v. County of Los Angeles* (1997) 60 Cal.App.4th 171, 181.) The doctrine applies when “(1) the same party has taken two positions; (2) the positions were taken

in judicial or quasi-judicial administrative proceedings; (3) the party was successful in asserting the first position (i.e., the tribunal adopted the first position or accepted it as true); (4) the two positions are totally inconsistent; and (5) the first position was not taken as a result of ignorance, fraud, or mistake.” (*Id.* at p. 183.)

Discussion

As already discussed, there is technically no operative pleading for the court to consider. Plaintiffs have still not filed a third amended complaint. Because there is no presently operative pleading, the court could arguably expunge the lis pendens because there are no claims of any kind pending, much less a real property claim.

Even assuming a third amended complaint will eventually be filed consistent with the narrow leave to amend provided in the order sustaining the demurrer to the first amended complaint, plaintiffs have not established by a preponderance of the evidence the probable validity of their real property claims. Judge Chung’s order sustaining the demurrer to the first amended complaint described in detail why judicial estoppel appears to bar plaintiffs’ action. The court takes judicial notice of that order on its own motion (Evid. Code, § 452, subd. (d)), and incorporates its reasoning here. Many of the same documents that order judicially noticed were also included as exhibits to the instant motion, including plaintiffs’ “Official Form 106A/B” from the bankruptcy proceedings where plaintiffs indicated they did not own or have any legal or equitable interest in any property as of October 2020. (Henshaw dec., filed 12/16/25, exh. A, p. 1.) Plaintiffs claim to an interest in real property in this action is contrary to their position in the bankruptcy proceedings (where they declared they had no real property interests); the bankruptcy court accepted plaintiffs’ position; the two positions are totally inconsistent; and plaintiffs have not shown that the position they took in the bankruptcy court was taken as the result of ignorance, fraud, or mistake.

Conclusion

The motion to expunge lis pendens is GRANTED. The court will prepare the order.

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Calendar Line 6**Case Name:** Vi Tran v. Hyundai Motor America**Case No.:** 25CV460409

In this Song-Beverly Consumer Warranty Act case, defendant Hyundai Motor America (Hyundai) petitions to compel arbitration based on two agreements with plaintiff Vi Tran (Tran): (1) a 2022 Owner's Handbook & Warranty Information (Owner's Handbook); and (2) a Bluelink Connected Services Agreement (CSA). Notice is proper and the petition is unopposed. Failure to oppose a motion may be deemed a consent to the granting of the motion. (Cal. Rules of Court, rule 8.54(c).) Failure to oppose a motion leads to the presumption that the non-moving party has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489.) Notwithstanding Tran's failure to oppose, the court has reviewed the language of the agreements at issue as well as the circumstances of their alleged execution. For the reasons stated here, the court concludes the petition must be denied as to the Owner's Handbook. As for the CSA, the court concludes that the claimed defects are inextricably intertwined with the Bluelink services such that the action is subject to mandatory arbitration under the CSA's arbitration agreement.

The operative initial complaint alleges nine causes of action: (1) breach of express warranty; (2) breach of implied warranty of merchantability; (3) violations of the Consumer Legal Remedies Act (Civ. Code, § 1750 et seq.); (4) false advertising (Bus. & Prof. Code, § 17500); unfair competition (Bus. & Prof. Code, § 17200); fraud; negligent misrepresentation; negligence; and injunctive relief. The complaint names as defendants Hyundai; Firstelement Fuel, Inc.; California Fuel Cell Partnership; and Doe defendants. The complaint alleges defendants systematically deceived consumers "regarding the Hyundai Nexo hydrogen fuel cell vehicle and its supporting infrastructure." (Complaint, ¶ 1.) Regarding vehicle-specific defects, the complaint alleges three categories of defect: (1) the "Vehicle's parking sensor system poses significant safety risks by deactivating without warning"; (2) the "Vehicle's GPS navigation system malfunctions by direction Plaintiff to hydrogen stations miles away instead of nearby locations; and (3) the "Vehicle's Bluelink system (the GPS, safety features, and Bluetooth) never functioned properly, and persistent infotainment system defects." (*Id.*, ¶¶ 3-4.)

The Owner's Handbook

Tran alleges she received an express warranty from Hyundai when purchased the subject vehicle. (Complaint, ¶ 19-23.) Hyundai attached a copy of the Owner's Handbook to a declaration in support of the petition to compel arbitration. (Declaration of Anthony Goel, exh. D.) A representative of Hyundai declares that the handbook would have been provided to Tran when she bought the vehicle. (Declaration of Anthony Goel, ¶ 6.)

An arbitration provision appears in the Owner's Handbook. It states, in relevant part, that the parties "each agree that any claim or disputes between us (including between you and any of our affiliated companies) related or arising out of your vehicle purchase, advertising for the vehicle, use of your vehicle, the performance of the vehicle, and any service relating to the vehicle, the vehicle warranty, representations in the warranty, or the duties contemplated under the warranty . . . shall be resolved by binding arbitration at either your or our election even if the claim is initially filed in a court of law." (Declaration of Anthony Goel, exh. D at p. 12.) The provision also states: "This agreement evidences a transaction involving interstate

commerce and shall be governed by the Federal Arbitration Act, 9 U.S.C. § 1-16.” (*Id.* at p. 14.) The Owner’s Handbook is not signed. There is no evidence that Tran was made aware of the text of the warranties in this document or the arbitration provision contained therein before she purchased the subject vehicle from the dealer.

Under the Federal Arbitration Act (FAA), the court’s role is limited to determining “(1) whether a valid agreement to arbitrate exists and, if it does, (2) whether the agreement encompasses the dispute as issue.” (*Chiron Corp. v. Ortho Diagnostic Systems, Inc.* (9th Cir. 2000) 207 F.3d 1126, 1130.) To determine “whether a valid contract to arbitrate exists,” courts apply “ordinary state law principles that govern contract formation.” (*Davis v. Nordstrom, Inc.* (9th Cir. 2014) 755 F.3d 1089, 1093 [citations omitted]; see also *Ingle v. Circuit City Stores, Inc.* (9th Cir. 2003) 328 F.3d 1165, 1170.)

No Mutual Assent

There was no mutual assent supporting a valid arbitration agreement based on the Owner’s Handbook. Tran did not sign the Owner’s Handbook, and Hyundai provides no evidence Tran knew about the Owner’s Handbook when purchasing the subject vehicle. Under certain circumstances, such as those involving an unsigned employee handbook, a contract may be void if “a party, before making the agreement, lacks reasonable opportunity to learn its terms.” (*Esparza v. Sand & Sea, Inc.* (2016) 2 Cal.App.5th 781, 790 [addressing arbitration provision contained in an employee handbook] [citing *Rosenthal v. Great Western Financial Securities Corp.* (1996) 14 Cal.4th 394, 421].) As noted in *Norcia v. Samsung Telecommunications America, LLC* (9th Cir. 2017) 845 F.3d 1279 (*Norcia*), another case involving an unsigned brochure (entitled “Product Safety & Warranty Information”): “Even if there is an applicable exception to the general rule that silence does not constitute acceptance, courts have rejected the argument that an offeree’s silence constitutes consent to a contract when the offeree reasonably did not know that an offer had been made.” (*Norcia*, 845 F.3d at p. 1285 [applying “basic principles of California contract law”].)

The court finds that there is no evidence of assent by Tran to the Owner’s Handbook’s arbitration provision.

Equitable Estoppel

Hyundai argues that notwithstanding Tran’s lack of assent and lack of knowledge regarding the arbitration provisions, she is now barred by equitable estoppel from challenging these provisions in the vehicle warranty because he has affirmatively asserted the warranty by seeking repairs from Hyundai and bringing this Song-Beverly Action.

A nonsignatory to a contract is generally “‘estopped from avoiding arbitration if [he] knowingly seeks the benefits of the contract containing the arbitration clause.’ [Citation.] Equitable estoppel, thus, ‘precludes a party from claiming the benefits of a contract while simultaneously attempting to avoid the burdens that contract imposes.’” (*Philadelphia Indemnity Insurance Co. v. SMG Holdings, Inc.* (2019) 44 Cal.App.5th 834, 841 [citations omitted].) But warranties like that found in the Owner’s Handbook are “governed by a different set of rules” in California: “A seller is bound by any express warranties given to the buyer, including statements in written warranty agreements, advertisements, oral representations, or presentations of samples or models. [Citations.] Language in a written

warranty agreement is ‘contractual’ in the sense that it creates binding, legal obligations on the seller [citation], but a warranty does not impose binding obligations on the buyer. Rather, warranty law ‘focuses on the seller’s behavior and obligation—his or her affirmations, promises, and descriptions of the goods—all of which help define what the seller in essence agreed to sell.’ [Citations.] A buyer may have to fulfill certain statutory conditions to obtain the benefit of a warranty. See, e.g., Cal. Civ. Code[,], § 1793.02(c) (stating that ‘[i]f the buyer returns the [assistive device for an individual with a disability] within the period specified in the written warranty,’ the seller must adjust or replace the device (emphasis added)). But a warranty generally does not impose any independent obligation on the buyer outside of the context of enforcing the seller’s promises.” (*Norcia*, *supra*, 845 F.3d at p. 1288.)

Norcia was not an equitable estoppel case, because the plaintiff there did not attempt to enforce the warranty. But its reasoning is nonetheless persuasive. A warranty is an atypical contract. It is essentially one-sided, even though it is offered only after a buyer has agreed to pay for something pursuant to a sales contract. And it imposes obligations on a seller (or, in this case, on a manufacturer who passes the car into the stream of commerce through an authorized dealer who is the actual “seller”), but no independent, free-standing obligations on a buyer. It is unreasonable to expect a car buyer to know or anticipate that the buyer is necessarily agreeing to arbitrate all claims against that manufacturer merely by receiving a pre-printed warranty in an owner’s handbook.

The proposition that a manufacturer can compel arbitration in virtually every Song-Beverly case simply by inserting language into an owner’s handbook—without ever calling the buyer’s attention to that language—runs counter to the reasoning of *Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122. In that case, the Supreme Court concluded that a manufacturer could not enforce an arbitration provision in a sales contract to which its authorized dealer and a car buyer both affirmatively assented (but to which the manufacturer itself was not a party). (*Id.* at p. 1126.) Allowing a car manufacturer to perform an end-run around that decision simply by inserting an undisclosed and unsigned arbitration provision into an owner’s handbook containing warranty terms would be an inequitable result. (*UFCW & Employers Benefit Trust v. Sutter Health* (2015) 241 Cal.App.4th 909, 929 [“ ‘The linchpin for equitable estoppel is . . . fairness.’ ”].) In contrast to other reported California decisions in which the equitable estoppel has been applied, the present case “does not present the unfairness that equitable estoppel is designed to avoid.” (*Id.* at p. 931.)

The Bluelink CSA

In contrast to the Owner’s Handbook, Hyundai contends that Tran signed the CSA agreement (including its arbitration provision). Hyundai’s Defendant’s Director of Connected Ops & Owner Apps/Web declared Tran would have had to click a box on a computer or tablet acknowledging that she “ ‘read and agree[d] to the Blue Link Terms & Conditions.’ ” (Declaration of Vijay Rao, ¶¶ 15, 23, Ex. B.) The arbitration provision in the CSA is broad:

- (a) Hyundai and you agree to arbitrate any and all disputes and claims between us arising out of or relating to this Agreement, Connected Services, Connected Services Systems, Service Plans, the Vehicle, use of the sites or products, services, or programs you purchase, enroll in or seek product/service support for, whether you are a Visitor or Customer, via the sites or through mobile application,

except any disputes or claims which under governing law are not subject to arbitration, to the maximum extent permitted by applicable law. This agreement to arbitrate is intended to be broadly interpreted and to make all disputes and claims between us subject to arbitration to the fullest extent permitted by law . . . The agreement to arbitrate otherwise includes, but is not limited to:

Claims based on contract, tort, warranty, statute, fraud, misrepresentation or any other legal theory; claims that arose before this or any prior Agreement (including, but not limited to, claims relating to advertising).

(Rao Decl., Ex. C at ¶ 14.)

As explained in the Declaration of Vijay Rao, “Bluelink refers to an optional telematics technology with various functions, features, and services, such as Connected Care, a comprehensive safety and car care system. Bluelink’s functions, features, and services, include, but are not limited to, on-demand diagnostics and alerts, service link, enhanced roadside assistance, automatic emergency assistance, remote, start, remote door lock and unlock, and remote car finder.” (Rao Decl. at ¶ 6.) Based on the court’s review of the complaint, it appears that Bluelink services are an integral part of Tran’s action. The complaint alleges three categories of defect: (1) the “Vehicle’s parking sensor system poses significant safety risks by deactivating without warning”; (2) the “Vehicle’s GPS navigation system malfunctions by direction Plaintiff to hydrogen stations miles away instead of nearby locations; and (3) the “Vehicle’s Bluelink system (the GPS, safety features, and Bluetooth) never functioned properly, and persistent infotainment system defects.” (*Id.*, ¶¶ 3-4.) At least two of those allege defects appear to implicate the Bluelink system. Based on the allegations at issue in this case, as well as Tran’s failure to oppose the petition to compel arbitration, the court concludes Tran’s complaint is subject to mandatory arbitration under the Bluelink CSA.

Conclusion

The petition to compel arbitration is GRANTED, based on the terms of the Bluelink Connected Services Agreement. This action is STAYED in its entirety pending the outcome of arbitration. (Code Civ. Proc. § 1281.4; 9 U.S.C. § 3.) A case status review regarding arbitration will take place on February 11, 2027, at 11:00 a.m. in Department 10. The court will prepare the order.

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